Section F: Abuse, Neglect, and Exploitation

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-103(g); K.S.A. 39-1430 definitions as quoted in the KDHE Non-Medical Supportive Care Application Guide (rev. 03/2024), ANE section.

F-1. Abuse, Neglect, and Exploitation Reporting Policy

Policy

Every employee and contracted worker of Golden Rule Home Care & Concierge Services LLC must report suspected abuse, neglect, or exploitation of a client.[1] A report is made immediately whenever there is reasonable cause to believe a client is being or has been abused, neglected, or exploited, or needs protective services.[2] Reports follow this policy and K.S.A. 39-1431.[3] No one needs permission from the administrator or anyone else before making a report.[4]

Definitions

These definitions come from K.S.A. 39-1430 as quoted in the KDHE application guide.[5]

"Abuse" means any act or failure to act performed intentionally or recklessly that causes or is likely to cause harm to an adult, including:[6]

1. Infliction of physical or mental injury;[7]
2. Any sexual act with an adult when the adult does not consent or when the other person knows or should know that the adult is incapable of resisting or declining consent to the sexual act due to mental deficiency or disease or due to fear of retribution or hardship;[8]
3. Unreasonable use of a physical restraint, isolation or medication that harms or is likely to harm an adult;[9]
4. Unreasonable use of a physical or chemical restraint, medication or isolation as punishment, for convenience, in conflict with a physician's orders or as a substitute for treatment, except where such conduct or physical restraint is in furtherance of the health and safety of the adult; or[10]
5. A threat or menacing conduct directed toward an adult that results or might reasonably be expected to result in fear or emotional or mental distress to an adult.[11]

"Neglect" means the failure or omission by one's self, caretaker or another person with a duty to supply or provide goods or services that are reasonably necessary to ensure safety and well-being and to avoid physical or mental harm or illness.[12]

"Financial exploitation" means the unlawful or improper use, control or withholding of an adult's property, income, resources or trust funds by any other person or entity in a manner that is not for the profit of or to the advantage of the adult.[13] "Financial exploitation" includes, but is not limited to:[13]

1. The use of deception, intimidation, coercion, extortion or undue influence by a person or entity to obtain or use an adult's property, income, resources or trust funds in a manner for the profit of or to the advantage of such person or entity;[14]
2. The breach of a fiduciary duty, including, but not limited to, the misuse of a power of attorney, trust or a guardianship or conservatorship appointment, as it relates to the property, income, resources or trust funds of the adult; or[15]
3. The obtainment or use of an adult's property, income, resources or trust funds, without lawful authority, by a person or entity who knows or clearly should know that the adult lacks the capacity to consent to the release or use of such adult's property, income, resources or trust funds.[16]

How to report

Any employee who suspects abuse, neglect, or exploitation takes these steps in order, as fast as safety allows:[17]

1. If the client is in immediate danger, call 911.[18]
2. If the suspected abuse, neglect, or exploitation involves Golden Rule HCCS or one of its employees, call the KDADS hotline at 1-800-842-0078 (weekdays, 8 a.m. to 5 p.m.).[19]
3. If it involves anyone outside the agency, or it happens after KDADS hotline hours, call the Kansas Protection Report Center (DCF) at 1-800-922-5330, open 24 hours a day, 7 days a week.[20]
4. Tell the administrator at (785) 323-0104 once the report is made.[21] A report never waits on reaching the administrator.[21]
5. Write down what you saw or heard, the date and time, and who was present.[22] Give the written account to the administrator the same day.[21]

Agency response

The administrator confirms that a report reached the KDADS hotline (KDHE intake) or DCF, takes steps to keep the client safe, and may remove an accused employee from client contact while the matter is reviewed.[21] Removal during an investigation is without pay, as set in the Employee Handbook (Section M).[23] **[VERIFY: Kansas and federal wage rules for unpaid removal of hourly and salaried staff.]** The agency runs a new criminal background check on any employee named in an allegation, as set in Section D.[24]

No employee will be disciplined or treated worse for making a report or cooperating with an investigation.[25] Reports, notes, and follow-up are kept confidential and stored apart from the client record and the regular personnel file.[26]

Where this policy is kept

This policy is kept in the agency policy binder and in an electronic file.[27] Each employee receives a copy at hire.[27]

F-2. Abuse, Neglect, and Exploitation In-Service Training Policy

Every employee and contracted worker receives in-service training on recognizing the signs and symptoms of abuse, neglect, and exploitation, and on the reporting steps in F-1.[28] Training happens at the time of hire or contract and again every year after that.[28] The date, topic, and trainer for each session are recorded in the employee's personnel file.[29] The administrator schedules the training and keeps the records.[30] Employees complete the training online, from home, through a course the administrator selects.[31] [TAYLOR TO NAME LATER: the online training course, once she has chosen one.]

Training covers, at a minimum:[32]

- The definitions of abuse, neglect, and financial exploitation in F-1;[32]
- Physical, emotional, and financial warning signs in a client's home;[33]
- The duty to report immediately and both hotline numbers;[2]
- The steps in F-1 and where the policy is kept;[17]
- Protection from retaliation for making reports or cooperating with investigations.[25]

F-3. Employee Acknowledgment

I received abuse, neglect, and exploitation training.[29] I read this policy, and I understand that I must report suspected abuse, neglect, or exploitation immediately.[2]

Employee name: _____

Employee signature: _____ **Date:** _____

Training date: _____ **Trainer:** _____

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[34] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[35]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. K.A.R. 28-51-103(g)(3); K.S.A. 39-1431(a)(1)(Q), (d). Required: The agency reports immediately when there is reasonable cause to believe a client is abused, neglected or exploited. The statute makes the chief administrative officer of a licensed home health agency a mandated reporter, and any other person may report. Requiring every worker to report is how the agency meets its duty. Source: Kansas Register, May 5, 2022; K.S.A. 39-1431.
2. K.A.R. 28-51-103(g)(3). Required: Report immediately if there is reasonable cause to believe a client is being or has been abused, neglected or exploited, or is in need of protective services. Source: Kansas Register, May 5, 2022.
3. K.A.R. 28-51-103(g)(2), (3); K.S.A. 39-1431. Required: The agency has written reporting policies, and reports follow those policies under K.S.A. 39-1431. Source: Kansas Register, May 5, 2022; K.S.A. 39-1431.
4. No state or federal rule applies; agency choice. Framing source: K.S.A. 39-1431, reporting abuse, neglect or exploitation.
5. K.S.A. 39-1430. Required: The statute defines abuse, neglect and financial exploitation of adults. These definitions are quoted from the statute. Source: K.S.A. 39-1430.
6. K.S.A. 39-1430(c). Required: Defines abuse as any act or failure to act, done intentionally or recklessly, that causes or is likely to cause harm to an adult. Source: K.S.A. 39-1430.
7. K.S.A. 39-1430(c)(1). Required: Infliction of physical or mental injury. Source: K.S.A. 39-1430.
8. K.S.A. 39-1430(c)(2). Required: Sexual acts without consent or when the adult cannot resist or decline consent. Source: K.S.A. 39-1430.
9. K.S.A. 39-1430(c)(3). Required: Unreasonable use of a physical restraint, isolation or medication that harms or is likely to harm. Source: K.S.A. 39-1430.
10. K.S.A. 39-1430(c)(4). Required: Unreasonable use of restraint, medication or isolation as punishment, for convenience, against orders or as a substitute for treatment. Source: K.S.A. 39-1430.
11. K.S.A. 39-1430(c)(5). Required: Threats or menacing conduct that result or might be expected to result in fear or distress. Source: K.S.A. 39-1430.
12. K.S.A. 39-1430(d). Required: Defines neglect as failure or omission to provide goods or services reasonably necessary for safety and well-being. Source: K.S.A. 39-1430.
13. K.S.A. 39-1430(e). Required: Defines financial exploitation as unlawful or improper use, control or withholding of an adult's property, income, resources or trust funds. Source: K.S.A. 39-1430.
14. K.S.A. 39-1430(e)(1). Required: Deception, intimidation, coercion, extortion or undue influence. Source: K.S.A. 39-1430.

15. K.S.A. 39-1430(e)(2). Required: Breach of a fiduciary duty, including misuse of a power of attorney, trust, guardianship or conservatorship. Source: K.S.A. 39-1430.
16. K.S.A. 39-1430(e)(3). Required: Obtaining or using property without lawful authority from an adult known to lack capacity to consent. Source: K.S.A. 39-1430.
17. K.A.R. 28-51-103(g)(2). Required: Written policies include the process for reporting abuse, neglect and exploitation. The order of steps is agency choice. Source: Kansas Register, May 5, 2022.
18. Kansas DCF, Report Adult Abuse page. Allowed: DCF advises contacting local law enforcement or dialing 911 if the adult is at immediate risk. Source: Kansas DCF, Report Adult Abuse.
19. KDHE Complaint Hotline page. Allowed: KDHE directs abuse, neglect or exploitation complaints about home health agencies to the KDADS hotline, 800-842-0078, Monday through Friday, 8 a.m. to 5 p.m. The page names KDADS as the hotline operator. Source: KDHE Complaint Hotline.
20. K.S.A. 39-1431(b); Kansas DCF, Report Adult Abuse page. Allowed: Reports go to DCF. DCF's Kansas Protection Report Center, 1-800-922-5330, is staffed 24 hours a day, 7 days a week. Source: K.S.A. 39-1431; Kansas DCF, Report Adult Abuse.
21. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(g)(2), written reporting policies, Kansas Register.
22. No state or federal rule applies; agency choice. Framing source: K.S.A. 39-1431(c), contents of a report.
23. 29 CFR 541.602(a), (b)(5). Allowed: No Kansas rule found addresses pay during removal. A salaried exempt employee gets full salary for any week with any work, except for unpaid disciplinary suspensions of one or more full days under a written conduct policy that applies to all employees. Hourly workers are paid for hours worked. Source: 29 CFR 541.602.
24. No state or federal rule applies; agency choice. Framing source: K.S.A. 65-5117, criminal history record checks.
25. K.S.A. 39-1432(b). Prohibited: No employer may fire or otherwise sanction an employee solely for making a report or cooperating with an investigation. Source: K.S.A. 39-1432.
26. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-110(c), client record contents, Kansas Register.
27. K.A.R. 28-51-103(b)(1)(D), (g)(2). Required: Written personnel policies are made available to all employees, and the agency has written abuse, neglect and exploitation reporting policies. Source: Kansas Register, May 5, 2022.
28. K.A.R. 28-51-103(g)(1). Required: In-service training on recognizing signs and symptoms of abuse, neglect or exploitation for employees and contracted personnel at hire or contract and every year after. Source: Kansas Register, May 5, 2022.
29. K.A.R. 28-51-103(g)(1). Required: All training is documented in each personnel file. Recording date, topic and trainer is agency choice. Source: Kansas Register, May 5, 2022.
30. K.A.R. 28-51-103(b)(1)(E), (F). Required: The administrator provides in-service education and maintains personnel records. Source: Kansas Register, May 5, 2022.
31. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(g)(1), abuse, neglect and exploitation training, Kansas Register.
32. K.A.R. 28-51-103(g)(1). Required: Training on signs and symptoms is required. Adding other topics is agency choice. Source: Kansas Register, May 5, 2022.
33. K.A.R. 28-51-103(g)(1). Required: Training covers recognizing the signs and symptoms of abuse, neglect or exploitation. Source: Kansas Register, May 5, 2022.
34. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.
35. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.